

1.

CASE #	CASE NAME	HEARING NAME
CVME2503311	HERNANDEZ VS WESTERN DENTAL SERVICES INC	MOTION FOR LEAVE TO AMEND

Tentative Ruling: Grant the motion, with 5 court days leave to file the amended complaint in the Clerk's Office.

C.C.P. §473 authorizes the court to grant leave to amend any pleading “in furtherance of justice, and on such terms as may be proper.” A motion for relief under CCP § 473 is addressed to the sound discretion of the trial court, and the exercise of that discretion will not be disturbed on appeal unless there is a clear showing that it was abused. (*Carroll v. Abbott Laboratories, Inc.* (1982) 32 Cal.3d 892, 897-898; *Record v. Reason* (1999) 73 Cal.App.4th 472, 486.)3.1324(b).

California courts have developed “a policy of great liberality in allowing amendments at any stage of the proceeding so as to dispose of cases upon their substantial merits where the authorization does not prejudice the substantial rights of others.” (*Dunzweiler v. Superior Court* (1968) 267 Cal.App.2d 569, 576.) Thus, if a motion is timely and the amended pleading will not prejudice the opposing party, it is error not to allow leave to amend. (*Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1048; *Morgan v. Superior Court* (1959) 172 Cal.App.2d 527, 530 [“If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion”].) Here, the motion is timely and no prejudice is alleged.

2.

CASE #	CASE NAME	HEARING NAME
CVME2600198	DARRAH VS MERCEDES-BENZ USA, LLC	MOTION TO COMPEL ARBITRATION

Tentative Ruling: Grant—the Defendant is an expressly named third party beneficiary of the arbitration agreement. Deny the request for judicial notice. The matter is stayed pending arbitration.

The Arbitration Agreement contained in the Lease Agreement provides, “This lease evidences a transaction involving interstate commerce. Any arbitration under this lease shall be governed by the Federal Arbitration Act.” (Decl. of Newman, Ex. B., pg. 4.) This provision is enforceable. Plaintiff does not dispute that the FAA applies.

Defendant produced a copy of the California Motor Vehicle Lease Agreement for the Subject Vehicle. The Arbitration Agreement therein states:

Any claim or dispute, whether in contract, tort or otherwise (including any dispute over the interpretation, scope, or validity of this lease, arbitration section or the arbitrability of any issue), **between you and** us or any of our employees, agents, successors, assigns, or the vehicle distributor, **including Mercedes Benz USA LLC (each a “Third Party Beneficiary”)**, which arises out of or relates to a credit application, this lease, or any resulting transaction or relationship arising out of this lease (including any such relationship with third parties who do not sign this contract), shall at the election of either